



CHAPTER 94.

An Act to amend the Law of Evidence.

A.D. 1915.

[23rd December 1915.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. If, during the continuance of the present war, upon the trial of a person accused of an indictable offence, it is proved that any person whose deposition has been duly taken before the justice or justices by whom the accused was committed for trial is unable to attend the trial, having regard to the necessities of the public service, by reason of being actively engaged in the naval or military service of His Majesty, and if also it is proved that such deposition was taken in the presence of the person so accused, and that (except in the case of a deposition by a witness on behalf of the accused) he or his counsel or attorney had a full opportunity of cross-examining the witness, then, if such deposition purports to be signed by the justice by or before whom the same purports to have been taken, it shall be lawful to read such deposition as evidence at the trial without further proof thereof unless it is proved that such deposition was not in fact signed by the justice purporting to sign the same :

Evidence of depositions of witnesses engaged on naval or military service.

Provided that no deposition shall be read in evidence under the powers of this section save with the consent of the court before which the trial takes place.

2.—(1) Where a person is tried either by court-martial or by a civil court with a jury (including as respects Scotland the High Court of Justiciary) for any offence against any regulations made under the Defence of the Realm Consolidation Act, 1914, as amended by any subsequent enactment, and the charge has previously been investigated and a summary of evidence taken by the proper military authority in accordance with the provi-

Power to give in evidence statements of witnesses at preliminary investigations.

A.D. 1915. sions of the Army Act and the rules of procedure made thereunder, then, on any such trial—

5 & 6 Geo. 5.
c. 8.

(a) the evidence on oath of any witness which is proved to have been taken down in writing at such investigation, in accordance with those rules, and purports to be signed or attested and witnessed in accordance therewith, may, if it is further proved that the witness is dead, or so ill as not to be able to travel, or unable to attend, having regard to the necessities of the public service, by reason of his being actively engaged in the naval or military service of His Majesty, be read as evidence without further proof thereof, unless it is proved that the evidence was not in fact signed or attested and witnessed in accordance with those rules; and

(b) any statement of the accused added in writing in accordance with those rules may, if necessary, be given in evidence against him without further proof thereof,

and a statement appended to the summary purporting to be signed by the officer before whom the summary was taken, that the evidence contained in the summary was taken in accordance with the said rules shall be evidence of the fact so stated, and that officer shall be deemed to be the proper military authority to take the summary, unless the contrary is proved: Provided that no evidence shall be received under the powers of this section save with the consent of the court before which the trial takes place.

(2) For removing doubts it is hereby declared that the evidence of any witness on any such investigation may be taken on oath, and the officer conducting the investigation has power to administer oaths for the purpose.

Substitution of imprisonment for sentence of death.

3. Where any person has been convicted of an offence punishable by death upon evidence solely contained in depositions which have been read in evidence at the trial under the powers conferred by this Act, the punishment of death shall not be inflicted, but the court may pass such sentence of imprisonment or penal servitude as it may think just.

Proof of naval or military service.

4. A certificate signed by a secretary or assistant secretary of the Admiralty or Army Council that a person is unable to attend, having regard to the necessities of the public service, by reason of his being actively engaged in the naval or military service of His Majesty, shall for the purposes of this Act be conclusive evidence of the fact so certified, and a certificate purporting to be signed by such a secretary or assistant secretary shall be deemed to be such a certificate as aforesaid unless the contrary is proved.

Application of documentary Acts to Army Council and

5. The Documentary Evidence Act, 1868, as amended by the Documentary Evidence Act, 1882, shall apply to the Army Council as if the Army Council was mentioned in the first

column of the Schedule to the first-mentioned Act, and as if two members of the Army Council, or the Secretary to the Army Council, or any person authorised by the Army Council to act on their behalf, were mentioned in the second column of that Schedule, and shall apply to the Secretary for Scotland as if the Secretary for Scotland were mentioned in the first column of the said Schedule and as if the Secretary for Scotland or an under secretary or assistant under secretary for Scotland were mentioned in the second column of that Schedule, and shall apply to the Local Government Board for Ireland as if the Local Government Board for Ireland were mentioned in the first column of the said Schedule, and as if a commissioner of the Local Government Board for Ireland or a secretary or assistant secretary of the said Board were mentioned in the second column of that Schedule.

A.D. 1915.

Secretary for
Scotland.

31 & 32 Vict.
c. 37.

45 & 46 Vict.
c. 9.

6. This Act may be cited as the *Evidence (Amendment) Act, 1915.* Short title.

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